

STATE OF NEW YORK

838--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. SOLAGES, LEVENBERG, JACOBSON, OTIS, SANTABARBARA, SLATER -- read once and referred to the Committee on Local Governments -- recommitted to the Committee on Local Governments in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general municipal law, in relation to the organization of industrial development agencies and the definition of labor organization

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 854 of the general municipal law is amended by adding a new subdivision 22 to read as follows:

(22) "Labor organization"--shall mean any organization which exists and is constituted for the purpose, in whole or in part, of collective bargaining, or of dealing with employers concerning grievances, terms or conditions of employment, or of other mutual aid or protection and which is not a company union.

§ 2. Subdivision 2 of section 856 of the general municipal law, as amended by chapter 356 of the laws of 1993, is amended to read as follows:

2. (a) An agency shall be a corporate governmental agency, constituting a public benefit corporation. Except as otherwise provided by special act of the legislature, an agency shall consist of not less than three nor more than ~~seven~~ nine members who shall be appointed by the governing body of each municipality and who shall serve at the pleasure of the appointing authority.

(b) Such members may include representatives of local government~~[- school boards, organized labor]~~ and business, and shall at least include a representative of a local labor organization and either a school district superintendent or a representative of a school board. A member

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 shall continue to hold office until [~~his~~] their successor is appointed
2 and has qualified. The governing body of each municipality shall designate the first [~~chairman~~] chairperson and file with the secretary of
3 state a certificate of appointment or reappointment of any member. Such
4 members shall receive no compensation for their services but shall be
5 entitled to the necessary expenses, including traveling expenses,
6 incurred in the discharge of their duties.

7 § 3. This act shall take effect on the one hundred eightieth day after
8 it shall have become a law.
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